

# HOUSE . . . . . No. 4017

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## The Commonwealth of Massachusetts

PRESENTED BY:

***Russell E. Holmes***

*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to eliminate parental alienation.

PETITION OF:

| NAME:                    | DISTRICT/ADDRESS:  | DATE ADDED:      |
|--------------------------|--------------------|------------------|
| <i>Russell E. Holmes</i> | <i>6th Suffolk</i> | <i>1/15/2025</i> |

# HOUSE . . . . . No. 4017

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By Representative Holmes of Boston, a petition (accompanied by bill, House, No. 4017) of Russell E. Holmes relative to parents involved in custody disputes. The Judiciary.

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## The Commonwealth of Massachusetts

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In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act to eliminate parental alienation.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           SECTION 1. Chapter 119 of the General Laws is hereby amended by inserting after  
2           section 51H the following 2 sections:-

3           Section 51I. (a) The department shall develop and implement educational programs for  
4           parents involved in custody disputes regarding the harmful effects of parental alienation on  
5           children and strategies for healthy co-parenting.

6           (b) The department, in consultation with the department of mental health, shall establish  
7           specialized support services for targeted parents and alienated children, including access to  
8           counseling, therapy and support groups.

9           (c) The department shall develop guidelines for the assessment and treatment of cases  
10          involving parental alienation and shall provide training to department personnel and service  
11          providers on these guidelines.

Section 51J. (a) The department shall conduct or commission research on the prevalence, causes and effective interventions for parental alienation.

(b) The department shall establish and maintain a database to collect information on cases involving parental alienation, including the effectiveness of various intervention strategies.

(c) Annually, the department shall submit a report to the general court on the implementation of this section and section 51I, including data on the number of cases identified, interventions utilized and outcomes achieved.

SECTION 3. Section 31 of chapter 208 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting after the word "conditions", in line 26, the following words:- , including interference with the child's relationship with the other parent.

SECTION 4. Chapter 208 of the General Laws is hereby amended by adding the following section:-

Section 31B. (a) For the purposes of this section, the following words shall have the following meanings:-

"Alienated child", a child who displays an unreasonable rejection of a parent with whom the child previously enjoyed a loving relationship.

"Alienating parent", the parent or guardian who engages in behaviors that impede, damage or interfere with a child's relationship with the other parent.

"Parental alienation", a process through which a child becomes alienated from a parent due to the psychological manipulation of another parent or guardian.

32           “Targeted parent”, the parent who is the object of the alienating behaviors.

33           (b) In any proceeding regarding custody of a child or parenting time for a child, the court  
34 shall recognize parental alienation as a form of psychological child abuse that causes significant  
35 emotional and developmental harm to children.

36           (c) The chief justice of the trial court, in consultation with the commissioner of children  
37 and families and the commissioner of mental health, shall establish criteria for identifying  
38 parental alienation in custody disputes and child welfare cases. Such criteria shall be used by the  
39 court, the department of children and families and mental health professionals when evaluating  
40 family dynamics.

41           (d) The trial court department shall develop and implement a comprehensive training  
42 program for judges, guardians ad litem, court clinicians, probation officers and other court  
43 personnel regarding the recognition of and appropriate responses to parental alienation.

44           (e) In any action involving custody or parenting time, if the court determines that a parent  
45 has engaged in alienating behaviors, the court shall consider such behaviors as a factor in  
46 determining the best interest of the child.

47           (f) The court may order any of the following remedies when alienating behaviors have  
48 been established: (1) court-ordered counseling for the alienating parent; (2) court-ordered family  
49 therapy; (3) appointment of a parenting coordinator; (4) modification of the custody or parenting  
50 time order; (5) supervised parenting time for the alienating parent; or (6) any other remedy the  
51 court determines to be in the best interest of the child.

(g) The court shall establish expedited procedures for hearing and deciding cases involving allegations of parental alienation.

SECTION 5. Section 38 of chapter 209 of the General Laws, as so appearing, is hereby amended, in line 8, after the word “injury” the following words:- or (c) a parent who engages in behaviors that impede, damage or interfere with a child's relationship with the other parent such that the child has become an alienated child as that term is defined in section 31B of chapter 208.

SECTION 6. Section 10 of chapter 209C of the General Laws, as so appearing, is hereby amended, in line 42, after the word “injury” the following words:- or (c) a parent who engages in behaviors that impede, damage or interfere with a child's relationship with the other parent such that the child has become an alienated child as that term is defined in section 31B of chapter 208.